



File No.: EXP202305278

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 19, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against EDP SOLAR ESPAÑA, S.A. (hereinafter, the defendant), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE	

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From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Content of the complaint and documentation submitted by the complainant

A.A.A. (hereinafter, A.A.A.) on March 3, 2023, filed a complaint with the Spanish Agency for Data Protection. The reasons for the complaint are as follows:

On February 22, 2023, he received an email from the domain @ECODES.org, which was addressed to him and “at least 99 different people, including myself” ... with an attached PDF file that contained, among other things, the following personal data:

- “name, surname, ID number, mobile phone number, email address, postal address, locality, postal code; of at least 99 different people, including myself.”

He provides:

- in DOCUMENT 1, a copy of an email received on February 22, 2023, at “***EMAIL.1@gmail.com” with the subject: “notification commercializer-Pavilion XXI century”, “Bcc”, only the complainant's address, “as a participant in Actur Barrio Solar”.

The text informs about the connection of photovoltaic installations, self-consumption of solar energy, and:

“As part of the process, last Friday, the distribution company notified all the commercializers of the participants of Barrio Solar that they must enable self-consumption in their domestic contracts.

Therefore, it is likely that you have received some communication from your electricity commercializer,

either by phone or email, asking you for a series of information about the self-consumption installation to which you are registered.

The documentation that each of you must send them and that we attach in this email is as follows:

- Contract of Distribution Coefficients (PDF)

- TXT File (notepad “

(the two attached documents are visible in the email, one in .txt format, the other with a numbering followed by the name: “(...)List of powers.pdf”, although the complainant does not provide them openly to see their content, therefore, these are not visible). At the bottom of the email is the logo of EDP SOLAR.

The complainant also provides as part of DOC 1:

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- An email sent by the claimant to ECODES.org, dated 22/02/2023, 19:16, in which he inquires why he has sent "all the personal data of the participants in the Barrio Solar project, in the annex of the email, not just mine."

- An email from ECODES.org to the claimant, dated 23/02/2023, 9:52, stating: "The documents we have sent you and their contents are those required for the activation process of collective self-consumption of a community photovoltaic installation.

The distribution document follows a regulated model and must include the data of the participants and the signature. In this case, EDP acts on behalf of the participants, and in such cases, it is required that along with the distribution document, the acceptance of this representation by all of them is included, a document that EDP has sent us for its annexation."

- Another email from the claimant to ECODES.org, dated 24/02/2023 at 18:37, requesting information about the person responsible for processing his data.

- An email from ECODES.org to the claimant, dated 27/02/2023, with a copy to dpd@edpenergia.es, in which, in response to his request, it informs him that "the person responsible for processing in the Actur Barrio Solar project, to whom you should direct your request, is EDP SOLAR ESPAÑA SA," (hereinafter EDP) providing its address and the contact details of its DPD. It adds that "the data processor is Fundación Ecología y Desarrollo, ECODES," along with its DPD contact details.

- An email from the claimant dated 28/02/2023 to EDP, indicating that from the address of ECODES, he received an email in which "all recipients were sent a file in which the following personal data can be read: name, surname, ID number, mobile phone number, email address, postal address, locality, postal code," and he exercises his right of access.

- In the attached file of the complaint (...), a copy of an email from EDP to the claimant, dated 2/03/2023: responding to the claimant's request, stating among other things:

"EDP is processing personal data concerning you, which were originally provided by ECODES, to whom you expressed your interest in being part of the Barrio Solar project and which were subsequently completed by you for the formalization of the participation contract in the same.

The data being processed are as follows:

Identifying data: Name and Surname, Address, Tax Identification Number (CIF),

Contact data: Phone, Email

Supply point data: Address, Number, Floor, Staircase, Letter, Postal Code, Population, Municipality, Country, CUPS

Contracted Product data: Number of participation installments, Payment Method,

Billing data: IBAN

Shared documents: Invoice and ID.

Your data is processed for the purpose of managing, maintaining, developing, completing, and controlling the contracting and operation of the "Barrio Solar" service, as well as to provide you with complementary services related to solar installations, complementary services for review, technical assistance, or maintenance.

Additionally, in accordance with what has been specifically requested, the specific data processing carried out within the framework of the contract you entered into in the context of the "Barrio Solar" project is outlined below:

The process of consumer participation in collective self-consumption is established in Royal Decree 244/2019, of 5/04, which regulates the administrative, technical, and economic conditions of self-consumption of electrical energy, for which the Guide "IDAE 021: Professional Guide for Self-Consumption Processing" was published by the Institute for Diversification and Saving of Energy, under the Ministry for Ecological Transition.

In compliance with the obligations set forth in this regulation and following the guidelines of the Guide, it was proceeded, as you know, to:

- The signing of a mandate in favor of EDP to carry out the corresponding procedures before the electricity distribution and marketing companies, as well as
- The management of the acceptance by all interested consumers of the corresponding agreement in which the criteria for the distribution of self-consumption are outlined.

Both you and the other consumers signed the mandate through an electronic signature system provided by a qualified trust service provider, the operation of which is regulated in the e-IDAS regulation: Regulation (EU) No. 910/2014 of the European Parliament and of the Council, of 23/07/2014, on electronic identification and trust services for electronic transactions in the internal market. This system generated an electronic receipt of the signatures made.

Subsequently, the representative of EDP proceeded to sign the general distribution agreement on behalf of all consumers who had empowered him for this purpose, among whom you are included. For this agreement to be valid, it is necessary that the signed mandates by the consumers are included in it. In this case, as the empowerment was done by digital means, instead of a signature.

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In physical form, the proof of the digital signature is provided, which contains the information you refer to in your inquiry, hence its inclusion in the agreement. Finally, the agreement was made available to all participating consumers, so they have a record of the agreement signed on their behalf, as part of it. Since it is a digital contract, it must be delivered in its entirety, as any alteration would imply that the delivered digital copy would be detected as manipulated, and therefore would not serve to justify the signed agreement. Therefore, as stated, the exchange of information carried out complies with the regulatory requirements for the creation of the energy self-consumption community.

However, we inform you that, upon your request, a matter has been processed with the Spanish Agency for Data Protection to clarify all points of the process regulated in the norm and interpreted in the IDAE guide. In addition to what has been previously informed, we indicate that, during the validity of the contract, your data may be communicated to the following entities:

The corresponding distribution company, with which there will be a permanent exchange of information for the proper provision of the service.

Public bodies and administrations as required by law.

Banks and financial entities for the collection of the services provided.

Other companies within the corporate group, solely for internal administrative purposes and the management of the contracted products and services."

SECOND: Transfer of the complaint

In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 27/04/2023, this complaint was forwarded to FUNDACIÓN ECOLOGÍA Y DESARROLLO, ECODES, and EDP SOLAR ESPAÑA SA so that they could send the following information to this Agency, in order to understand the circumstances of the specific case and to admit or not the complaint for processing:

1. DETAILED AND CHRONOLOGICAL DESCRIPTION OF THE EVENTS THAT OCCURRED.

1.1 On 24/05/2023, a response was received from FUNDACIÓN ECOLOGÍA Y DESARROLLO,

ECODES (hereinafter ECODES), which begins by stating that it is an independent non-profit organization that has been working for sustainable and environmentally friendly development since 1992.

The “Barrio Solar” project is a pioneering collective self-consumption initiative, where 100 neighbors can take advantage of the solar energy generated on the roof of a municipal building in their area, by paying a monthly fee and without the need to install anything in their homes. This is technically referred to as a collective solar energy self-consumption project.

To launch it, an agreement was signed between EDP ENERGÍA SAU, a Spanish company belonging to the EDP España group, dedicated to the production of electrical energy, the Zaragoza City Council, and ECODES. This agreement contains an annex regarding the processing of personal data in which it is established that EDP is the data controller and ECODES is the data processor.

It states that a contact form was made available on its website, so that those interested in being part of the project could enter their email and/or phone number. The data contained in this form reaches a single email account of ECODES.org, managed by ECODES, which is only accessible to two people from ECODES, with the purpose of preparing the list of participants and potential reservations of those interested in the project.

“In the event that the information requester through the aforementioned email ultimately wishes to participate in the initiative, ECODES transfers the contact data, email, and phone number to EDP, the company in charge of the project, which contacts them and initiates the process of formalizing the participation contract for which...” (text cuts off).

And it continues: “For the formalization of participation, the interested parties ultimately provide their personal data directly to EDP, either via the web or by phone (including address, CUPS, and account number among others).”

At one point in the process, EDP requests ECODES to, following the established process in the aforementioned Royal Decree 244/2019 of 5/04, which regulates the administrative, technical, and economic conditions of collective self-consumption of electrical energy, resend an email to the 100 participants.

ECODES does so, following the guidelines received from EDP. It sends an email with a blind copy to all participants.

Attached in Excel format is the content of the account of events with the complainant and the communications received and issued, with the date of the actions carried out.

1.2 On 26/05/2023, a response was received from EDP, which indicates that within the framework of the creation of a “community” of associated consumers for collective self-consumption of energy, under the regulation contained in Royal Decree 244/2019, of 5/04, the creation of said community was carried out, gathering, for this purpose, the consumers interested in participating in it, totaling 99 consumers, including the current complainant.

“To carry out, in accordance with current regulations, the processing of the registration of the community with the energy distribution and marketing companies, the following was done:

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- the signing of a mandate in favor of EDP to carry out the corresponding procedures before the electricity distribution and marketing companies, in accordance with the express authorization provided in the Annex of the aforementioned Royal Decree to carry out the process, as well as

- the management of the signature by all participants of the corresponding agreement in which the criteria for the distribution of self-consumption are collected, in accordance with the provisions of Article 4.3 of the aforementioned regulation, as well as.

This process was carried out digitally, sending the involved consumers a copy of the agreement through the electronic signature system provided by EDP for these purposes, so that, once validated, they could express their consent by responding affirmatively to their participation in the community under the communicated terms. Additionally, a mandate contract is sent for them to empower EDP to

sign the distribution agreement on their behalf and carry out the necessary procedures for the completion of the contracting with the energy distribution and marketing companies. In this way, the electronic system used to carry out the electronic acceptance process of the mandate allows users to communicate their acceptance, ensuring that it has been effectively expressed by the user, who has previously been identified by EDP as a participating consumer in the self-consumption community, the exact moment in which the acceptance process is carried out, as well as the integrity of the document effectively signed.

EDP informs that for the electronic acceptance process of the mandate they have "a trusted third-party service provider in the field of qualified timestamps, in accordance with the applicable national legislation in Spain regarding the eIDAS Regulation (Regulation (EU) No. 910/2014 of the European Parliament and of the Council, of July 23, 2014, on electronic identification and trust services for electronic transactions in the internal market and repealing Directive 1999/93/EC) and that the process involves the processing of the referred contact data to generate the corresponding evidence, in accordance with the provisions of Article 3 of the eIDAS Regulation, and in relation to the provisions of Article 42 of the same legal text, in order to be able to certify the relevant information to comply with the qualified timestamp service and allow the generation of evidence of the acceptance of the agreements and mandates in accordance with the aforementioned eIDAS Regulation. That is to say, the contact data are those that ultimately link the participant with the acceptance of the terms of the contract and the mandate, being essential to verify this fact, as well as to justify that the copy has been duly delivered, as required by consumer protection regulations (attached as document No. 1 Report on contracting via SMS and email in the service of the provider).

Once the management of the individual signatures of the mandates is completed, the general distribution agreement accepted by the participating consumers is generated with all the CUPS and percentage of participation of each consumer in the community (for which all the representation mandates of the participants are attached) and is signed by the representative of EDP for its submission to the corresponding distribution and marketing entities and is made available to all.

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participating consumers of the community, so that they have a record of the agreement signed on their behalf.

Specifically, these documents have been prepared with the content provided in the Guide "IDAE 021: Professional Guide for the Processing of Self-Consumption" from the Institute for the Diversification and Saving of Energy, under the Ministry for Ecological Transition, specifically model 5.

By complying with these last procedures, the final document made available to the participating consumers may include some contact information of these, derived from the means used for signing the mandates, since, as indicated, the signing of these documents is carried out by electronic means whose digital evidence includes this information.

Given that EDP acts as a representative of the consumers, and not in its own name, it must make the content of the agreement available to them, as each of them is a party to it. Likewise, since the agreement is signed digitally, any manipulation or modification of its content (to remove personal information from the signature) would imply that the copy delivered would not serve the consumer as integral evidence of the content of the contract, as it would not meet the integrity requirement since it has effectively been modified.

In specific response to the chronology and description of the events, EDP stated that the claimant signed on 5/07/2021 a CONTRACT FOR COLLECTIVE SELF-CONSUMPTION AND ENERGY EFFICIENCY WITH EDP, see DOCUMENT 2.

On the same date, the claimant granted special power to EDP to carry out, in their name and representation, certain acts within the framework of the contracting of the "Solar Neighborhood" Project, see DOCUMENT 3.

From DOCUMENT 2, the following stands out among others:

- Encompassed by a first document which is the “EDP contract confirmation” in which the third-party trusted service provider intervenes, electronic document. It appears as sent for acceptance by SMS, the EDP SOLAR CONTRACT, with the mobile phone number and email of the claimant included in the sending data, which matches the one provided in their complaint where the attached file subject to the complaint was sent. It also contains their full name and surname, document generated on 5/07/2021. In the section “request tracking,” the chronology of the contract confirmation is visible with SMS messages, with the first sending on 2/07/2021, “EDP Solar Contract: (...)”, asking them to “respond with a YES to this message to confirm the hiring” with confirmation on 5/07/2021.

- Following this is the document: “SERVICE CONTRACT WITH EDP” which is a sheet “that perhaps contains pre-filled with typewritten text, the name and surname, the customer’s address, the NIF, the phone number, the address of the supply point.”

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and the electricity CUP and the IBAN data for account charge.” It is followed by the section: “specific conditions of the contract.”

- A second sheet that does not contain any logo or signature, which (also lacks a page number) contains the following information about personal data:

“Personal data will be processed by EDP Solar España SA as the data controller for the maintenance, development, compliance, and management of the contractual relationship, prevention of fraud, creation of profiles based on information provided by the client and/or derived from the provision of the service by EDP, as well as sending commercial communications related to products and services associated with solar installations and energy consumption, which may be personalized based on the client’s profile, and as stated in the general conditions, the client may oppose the sending of commercial communications at any time. Likewise, this contract will serve the purpose of allowing the client to receive information and participate in activities associated with the Solar Neighborhood: workshops and conducting surveys related to participation in said project, monitoring energy consumption, and sending advice on electricity consumption and utilization of the solar energy produced.

□

It is followed by the informative clauses of the “general conditions of the EDP Solar Neighborhood service,” with the following characteristics:

There is a section 8: “Protection of Personal Data,” which highlights:

8.1 Purposes, for the formalization of the contract

8.2 Categories of personal data,

8.3 Communications and recipients of the data

8.4 Rights.

- It details the chronological account indicating that on the mentioned date, the claimant granted power of attorney in favor of EDP to carry out certain acts on their behalf and representation within the framework of the project contracting. A copy of document 3 “power of representation and signature confirmation” is provided, which is a document from a trusted third party that includes an SMS message, of “EDP SOLAR power of representation,” sent via SMS to the claimant's designated phone number, requesting a response with a Yes to the SMS for confirmation, with details at another address, sent on 5/07/2021, and with a response on the same day (yes). Another document titled “power of representation,” dated 3/07/2021, is attached, which includes:

1. All necessary procedures for the registration, modification, and/or cancellation of the solar installation in which the Client participates (hereinafter the Installation) in the Administrative Registers of Self-consumption and, where applicable, of Electricity Production Installations.
2. Signing, on behalf of the Client, of the Agreement for the Distribution of the energy generated by the Installation, prior determination of the coefficient corresponding to the Client based on

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of the capacity of the Installation, the number of associated consumers sharing it, and what has been agreed upon in the contract signed between the Client and EDP.

3. Signature, on behalf of the Client, of the modifications to the Distribution Agreement that are necessary.

4. Carrying out the communications that are necessary in relation to the Distribution Agreement to the distribution company and the marketer with which the Client has contracted the supply.

5. Any other communication with the distributor, the marketer, the Autonomous Communities, or any competent body that is necessary to process or confirm the activation, modification, or cancellation of self-consumption by the Client, as well as any communication in relation to the Distribution Agreement. In particular, EDP SOLAR ESPAÑA, S.A. is authorized to request from the distributor and/or the Client's marketer confirmation of the date on which self-consumption has been activated for the Client, as well as any eventual cancellation or modifications, and to know at all times the status of the processing of the processes associated with self-consumption by said companies."

EDP declares that these documents have been prepared with the content provided in the IDAE Guide 021, "Professional Guide for the Processing of Self-Consumption" of the INSTITUTE FOR DIVERSIFICATION AND ENERGY SAVINGS, dependent on the Ministry for Ecological Transition, specifically model 5.

- It goes on to state that on 27/02/2023, it received a letter from the claimant, which appears in Annex 1 of this complaint.

On 28/02/2023, the exercise of the claimant's right of access was received, which was addressed on 2/03/2023, also appearing in ANNEX 1 of the claimant.

It also provides document 5, which according to EDP is titled "email sent by the claimant to EDP on 3/03/2023," with the text:

"attached I send an email in which I expressly indicated at the time of contracting that I did not consent to the processing of my personal data by other companies or third parties that were not strictly necessary for the contractual relationship.

I reiterate my request and ask you to limit the processing and transfer of my personal data to the strictly necessary purposes for the contractual relationship."

According to EDP, this means that "The now Claimant responds to EDP SOLAR accepting the explanations provided regarding the processing of their data in the email of 2/03/2023, as well as reiterating that their data is processed strictly for those purposes necessary to comply with the contractual relationship."

- EDP states that on 28/02/2023, following the email received, EDP submitted a query to the AEPD in order to clarify whether sharing certain personal data with the other members of the community to fully comply with the process regulated in Royal Decree 244/2019, of 5/04, which regulates the administrative, technical, and economic conditions of self-consumption of electrical energy and the IDAE Guide 021: Professional Guide for the Processing of Self-Consumption, could have a negative impact for the interested parties from the perspective of privacy and protection of their personal data. A copy of the query submitted to the AEPD is provided as document No. 4.

In this query provided, there is a probable error in the date of the letter, which indicates 27/02/2022. It is highlighted from the query, among other points necessary to relate the query and its terms, with the eventual response, the following is stated, according to the order given in the query:

- In the framework of the creation of a community of associated consumers for collective self-consumption of energy, the community was created, with 99 interested consumer participants, citing RD 244/2019 of 5/04.

- All participants signed a mandate in favor of EDP to carry out the corresponding procedures before the distribution and electricity marketing companies, attending to the express authorization provided in the Annex of the aforementioned Royal Decree to be able to carry out the process (it does not mention which of the annexes it refers to) specifying that "a model contract and a model power of representation are included," not knowing exactly which documents were sent.

- It states that, "additionally, a mandate contract is sent to empower EDP to sign on their behalf the distribution agreement and carry out the necessary procedures for the completion of the contracting with the distribution and energy marketing companies."

- “Once the management of the individual signatures of the mandates is completed, the general distribution agreement accepted by the participating consumers is generated with all the CUPS and percentage of participation of each consumer in the community (for which all the representation mandates of the participants are attached) and is signed by the EDP representative for its submission to the corresponding distribution and marketing entities and is made available to all participating consumers in the community so that they are aware of the agreement signed on their behalf. Specifically, these documents have been prepared with the content provided in the IDAE Guide 021, professional guide for the processing of self-consumption, model 5.

Access to this guide and in the models of agreements on distribution criteria indicates that in application of RD 244/2019, of 5/04, the

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The following consumers agree to partner in the installation of collective self-consumption of electrical energy with the following characteristics, with a list to be completed with the data of the associated-consumer holder of the supply – in which they must provide NIF, CUPS, and distribution coefficient.

The respondent states that: “Upon fulfilling these last procedures, it was detected that the final document made available to the participating consumers may include some contact information of these, derived from the means used for signing the mandates, since, as indicated, the signing of these documents is carried out by electronic means whose digital evidence includes this information (a model of confirmation of power of representation is attached).

It should be noted that point 13 of the IDAE guide requires that this agreement be signed by all, and must be sent by each consumer to the distribution company, either directly or through their marketer. If a Renewable Energy Community had been chosen for the collective self-consumption, it could represent the associated consumers in all these procedures, provided that the associated consumers authorize it appropriately.”

Given that EDP must act as the representative of the consumers, and not in its own name, it must make the content of the agreement available to them, as each of them is a party to it.

Likewise, since the agreement is signed digitally, any manipulation of its content to remove personal information from the signature would imply that the copy delivered would not serve the consumer as complete evidence of the content of the contract, as it would not meet the integrity requirement, having been effectively modified – it is raised to the AEPD whether it considers that the procedure required by Royal Decree 244/2019 and the IDAE guide is a procedure that may comply with personal data protection regulations, as all members of the community, signatories of the documentation, may have access to certain personal data of the other consumers, as they are all part of the same contract, thus attending to the literal requirements of the referenced Royal Decree and, where applicable, the referenced IDAE Guide, all taking into account that to date, this type of consumer communities have not been established in Spain, being the one proposed to EDP among the first existing at the national level, as well as the fact that the legal deadline established to send the documentation marked by the Royal Decree to the consumers' energy marketer is a very short period of time, 10 calendar days.

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Specifically, the main concern raised to EDP is that, in the event of fully complying with the literal requirements set forth by the Royal Decree and, where applicable, by the IDAE Guide, it necessarily entails that all members of the community know certain personal data of the other members of the community, something that, while from the perspective of energy regulations seems reasonable and

justified in law, appears to have a negative impact for consumers from the perspective of privacy and protection of their personal data.”

EDP states that on 14/03/2023, a response was received from the AEPD, indicating that “in this regard, it should be noted that the AEPD did not oppose or refer to the process detailed and carried out by EDP as being contrary to the provisions of data protection regulations.” It provides DOCUMENT 6, in which the response date of 14/03/2023 is seen, and from which it is worth highlighting among other aspects:

- In general, it reviews the bases of legitimacy and refers to the sectoral norm, possibly existing under 6.1.c) of the GDPR, and if this were the case, the consent of the affected parties would not be required.

- It adds the respect for the principles of the GDPR, highlighting the minimization principle of Article 5.1.c) of the GDPR and the principle of proactive responsibility.

It concludes by stating that “This response constitutes a merely informative activity of the AEPD; it has no binding effects, does not modify the legal situation of the applicant, and does not constitute an appealable act.”

1.

DETAILED SPECIFICATION OF THE CAUSES THAT MADE THE INCIDENT POSSIBLE.

- ECODES stated that the procedure established in RD 244/2019 of 5/04 and the IDAE self-consumption guide has been followed, in which the distribution document is established, with a pre-established format necessary to register and process collective self-consumption. It states that the only personal data processed, which are not expressly mentioned in the aforementioned Royal Decree, are the email and phone number; however, it has been necessary for EDP to collect them in order to carry out the representation via electronic signature (a procedure that was indeed foreseen in the previously mentioned documentation).

- EDP stated that in no case can the detailed facts be considered an incident in the field of Data Protection, based on the fact that the sharing of certain data with the other members of the community complies with the regulatory requirements in the field of energy, as well as in the field of Data Protection.

The personal data of the complainant were processed within the framework of the contract he made in the project called “Barrio Solar.”

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"According to the conditions established by RD 244/2019 of 5/04 and the IDAE Guide, the management of the acceptance by all interested consumers of the corresponding agreement, which includes the criteria for the distribution of self-consumption, as well as the signing of a mandate in favor of EDP to carry out the procedures before the electricity distribution and marketing companies, was proceeded with." Both the claimant and the other consumers signed the mandate through an electronic signature system provided by a qualified trust service provider. Subsequently, EDP, as the mandatary, proceeded to sign the general distribution agreement on behalf of the consumers who had empowered it for this purpose. For this agreement to be valid, it is necessary that it includes the mandates signed by the consumers. In this case, since the empowerment is carried out by digital means, instead of a physical signature, the proof of the digital signature is provided, which contains information about the other participants, hence their inclusion in the agreement. Finally, the agreement was made available to all participating consumers, so they have a record of the agreement signed on their behalf, as part of it. Since it is a digital contract, it must be delivered with its complete content, as any alteration would imply that the delivered digital copy would be detected as manipulated, and therefore would not serve to justify the signed agreement. Therefore, as stated, the exchange of information carried out complies with the regulatory requirements for the creation of the energy self-consumption community. Likewise, and in accordance with the response to the inquiry posed to the AEPD, the points of the process

regulated in the norm and interpreted in the IDAE guide are fully compatible with data protection regulations."

1.

NUMBER OF PERSONS AFFECTED BY THE VIOLATION OF PERSONAL DATA SECURITY.

- ECODES indicates that "100 people have had their personal data communicated to the other 99 participants in the project."

- EDP stated that "there has been no incident or security breach affecting the rights and freedoms of the interested parties and, therefore, there are no affected persons. Notwithstanding the above, and for purely informational purposes, we must clarify that the total number of consumers participating in the 'Barrio Solar' project, including the now-claimant, amounts to 99 consumers, although the exchange of certain data with the other participants is lawful and complies with the requirements of sectoral regulations, as well as data protection regulations."

4.

CATEGORY OF PERSONAL DATA INVOLVED.

- ECODES indicates that "the revealed data has been of a general category: name, surname, ID number, mobile phone number, email address, postal address, locality, CUPS, and postal code."

- EDP stated that: "no personal data involved has been detected, given that, as has been made clear, the exchange of personal data was carried out in strict compliance with Royal Decree 244/2019 of 5/04, as well as the IDAE Guide; therefore, we cannot consider that there are affected persons involved and, consequently, categories of personal data involved since no security incident has been reported." However, it indicates that the only data exchanged within the framework of the signing process by the community participants are: Co-participants - Identification Data, Personal Contact Data, Commercial and Contractual Conditions.

5.

POSSIBLE CONSEQUENCES FOR AFFECTED PERSONS.

- ECODES stated that the consequences, although with a low probability of occurrence, may be as follows: Loss of control over their personal data, reputational damage, and, to a lesser extent (due to being confined to one hundred neighbors in the neighborhood), being a victim of phishing/spamming campaigns."

- EDP stated that no consequences have been detected for affected persons, since no security incident has materialized. "The exchange of information was carried out at all times with a fully lawful basis for legitimacy and in compliance with the regulations applicable to the Data Controller, especially since this process was made known to the AEPD and it did not oppose or raise any objections to it."

6.

DETAILED DESCRIPTION OF THE ACTIONS TAKEN TO RESOLVE THE INCIDENT AND MINIMIZE ITS IMPACT ON AFFECTED PERSONS.

- ECODES responds that "the actions taken were the measures provided for in the implementation of the General Data Protection System, prior to the complaint; namely:

- immediate and diligent response to the affected party;
- immediate notification to the data controller upon becoming aware of the situation,
- communication of the response to the affected party,
- follow-up by phone and via email in both directions (to the affected party and to the data controller).
- On the part of the Data Controller, a question was submitted on 02/03/2023 to the Spanish Agency for Data Protection to clarify that all points of the process regulated in the norm and interpreted in the IDAE guide are fully compatible with data protection regulations.

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- Proposal by ECODES to improve the procedure whereby EDP, using its power of representation, would send the distribution document directly to the marketers. This proposal was accepted by Endesa and Iberdrola as a valid procedure for their participating clients, but it is unknown whether the other

marketers will adopt it, as it is not the procedure established by RD 244/2019.”

□ EDP stated that “there has not been a security incident that requires actions to minimize the impact on potential affected persons, by EDP SOLAR and, as indicated in the chronological description of the facts, in compliance with the principle of proactive responsibility, and after receiving the emails from the now claimant, it raised a prior consultation with the AEPD in order to corroborate and verify whether the process carried out in accordance with the energy regulations was in line with data protection regulations.” EDP also reiterates that “according to the response provided by the AEPD, we can interpret that the process was lawful and complied with data protection regulations,” citing parts of the response regarding the basis of legitimacy and treatment principles.

7. SECURITY MEASURES FOR PERSONAL DATA PROCESSING ADOPTED PRIOR TO THE INCIDENT, AS WELL AS DOCUMENTATION EVIDENCING THE RISK ANALYSIS THAT LED TO THE IMPLEMENTATION OF SUCH SECURITY MEASURES AND, WHERE APPLICABLE, A COPY OF THE IMPACT ASSESSMENTS OF THE PROCESSING WHERE THE SECURITY BREACH OF PERSONAL DATA OCCURRED.

□ ECODES responded that “At the beginning of the project, ECODES was identified in this phase as the Data Processor of personal data and the relevant security measures were implemented to ensure the adequacy of the processing to legality. The only assets of ECODES involved in this project are a dedicated email account and an Excel file operated solely by two people (shared on Google Drive only by them), following ECODES’ security guidelines. The processing of personal data that has led to the complaint has been deliberate, following the guidelines of Royal Decree 244/2019; in ECODES’ opinion, there has been no security breach, as there has never been any unintentional data disclosure. The email was sent with a blind copy to all of them. Regarding ECODES, actions were taken diligently.”

□ EDP stated that it adopted security measures, listing several such as the preparation of a RAT, DOCUMENT 7, which describes as “management of the contracting process for the sales made of installations and services of EDP Solar,” with the purpose of “managing the contracting of installations and services of EDP Solar,” and with the lawful basis for processing being “execution of the contract.” In “data communications, it includes among others, “marketing and electricity distribution entities,” and “co-participants-execution of the contract-” and risk analysis in DOCUMENT 8, indicating that “According to the level of risk detected, the minimum applicable security measures are determined,” among which are: - the one related to personnel with access to data, the signing of a written confidentiality commitment, knowledge of rules and procedures that must be adopted, they have an access control procedure for the data, backup copies, storage media and devices archiving, inventory and control of the entry and exit of documents and media, definition and implementation of a procedure for anonymizing personal data in cases where it is technically possible. The document 8 of “risk analysis of the processing,” provided, is an Excel table with two columns that limits itself to answering No to all questions, such as: Automated processing Large scale of special categories Systematic observation on a large scale of a publicly accessible area Profile evaluation Automated decisions Systematic observation of the interested parties Very sensitive or very personal data Large scale data processing Interconnection of big data Vulnerable interested parties data Use of innovative technologies Inevitable processing/restriction of the exercise of rights

8. Copy of the Activity Register of the processing where the incident occurred.

□ ECODES attaches the RAT of “File Group: Barrio Solar,” Description: “control of participants and reservations of the community solar self-consumption project Barrio Solar.” Purpose and uses: To process the inclusion of participants/reservations in the self-consumption project.” Legitimization: consent of the interested party. Retention: They will be kept for the time stipulated to determine the possible responsibilities that may arise from that purpose, after the completion of the project.” Source of the data: The interested party themselves.

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Recipients of data transfers: EDP

Security officer, with one person listed,

Exercise of rights, "Fundación Ecología y Desarrollo, and includes the address, phone number", the same data as the footer of the email sent to the claimant.

Information fields: CIF/NIF, CUPS, energy consumption, first and last name, email address, manual or digitized signature, phone number.

Then in files, it indicates the existence of two:

- ACTURBARRIOSOLAR@ECODES.ORG: described as an email account dedicated to receiving requests from interested parties in the Barrio Solar project, "information fields": First and last name, Address (postal/electronic), Phone, with "supervisor" being a natural person.

"BARRIO SOLAR": described as "contact for participants and reservations of the "Barrio Solar" project, "information fields": "energy consumption, membership or not to Zaragoza housing, CUPS, CIF, NIF, manual or digitized signature, first and last name, postal address - electronic phone", with "supervisor" being a natural person.

☐

EDP stated that it provides a copy of the RAT in document 7.

9. IF THE SECURITY BREACH HAS BEEN COMMUNICATED TO THE AFFECTED PERSONS, INDICATE THE CHANNEL USED, DATE OF COMMUNICATION, AND DETAILS OF THE MESSAGE SENT. IF NOT, INDICATE THE REASONS.

☐

ECODES responded that: "since we do not understand that there has been a security breach, the process of communication to the interested parties or to the AEPD was not initiated, according to the procedure for Incidents and security breaches established in the Data Protection Management System.

However, as described in the statement of facts, action was taken with diligence and proactivity by communicating it to the person responsible.

"Yes, an email was sent to all participants warning them not to respond, and to wait for further instructions."

☐

EDP stated that since there was no security breach affecting the interested parties, it was not necessary to make any communication.

10. INDICATE IF THE SECURITY BREACH HAS BEEN NOTIFIED TO THIS SUPERVISORY AUTHORITY. If not, indicate the reasons why the

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security breach has not been notified to this Supervisory Authority within 72 hours of becoming aware of it. You can obtain information about the management and notification of security breaches at the following link from the Agency:

<https://www.aepd.es/sites/default/files/2019-09/guia-brechas-seguridad.pdf>

☐

ECODES indicates that "It has not been notified, as we did not understand it to be a security breach, but rather the communication of data according to the necessary procedure for participation in the "Barrio Solar" project of collective self-consumption, established by Royal Decree 244/2019."

☐

EDP stated that there was no security breach and it was not necessary to notify the supervisory authority, "in an exercise of transparency with the AEPD and in compliance with the principle of proactive responsibility, a consultation was made to the

AEPD" in which the process carried out in compliance with energy regulations was detailed in order to confirm whether it was in accordance with data protection regulations. It reiterates that the generation of a general distribution agreement accepted by all participating consumers, detailing the CUPS and the percentage of participation of each consumer, estimating that EDP acted as a representative of the consumers, not in its own name, "must make the full content of the agreement available to the participating consumers, although when complying with this procedure of making it available, it was detected that the final document included certain contact information of the other consumers."

It reiterates that "the agreement is signed digitally, any manipulation or modification of its content (to remove personal information from the signature) would mean that the copy delivered would not serve the consumer as complete evidence of the content of the contract, therefore, it would not meet the integrity requirement as it would have been modified. Furthermore, EDP has consulted the qualified trust service provider regarding whether all the data included in the signature justifications of the mandates are essential, confirming that the data corresponding to the phone number and email are essential to demonstrate what occurred in the communication and to identify the signer."

11. MEASURES YOU PLAN TO TAKE TO PREVENT A SIMILAR INCIDENT IN THE FUTURE.

☐

ECODES indicates that: "On behalf of the Data Controller, a question was presented on 02/03/2023 to the Spanish Agency for Data Protection to clarify that all points of the process regulated in the norm and interpreted in the IDAE guide are fully compatible with data protection regulations. We are waiting to communicate this to all participants in the project and to modify the procedure in future calls."

☐

EDP stated that "in order to maximize compliance standards in privacy matters, it has decided that, from now on, the copy of the agreement will be sent to the other participants without including the signature justification of the mandates."

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thus preventing the phone number and email address from being visible to the other participants.

Notwithstanding the above, in the event that one or more participants request a complete copy of the agreement, the signatures of the mandates must be provided; however, in any case, such exchange of information would be in accordance with the provisions of the energy regulations, as well as with the criteria of the AEPD, especially when the response to the inquiry raised does not express opposition or refer to an objection regarding the legality of the process carried out."

12. ANY OTHER MATTER CONSIDERED RELEVANT.

- ECODES indicated that "it has limited itself to acting according to the mandate established in the specifications of Royal Decree 244/2019, the guidelines and forms proposed by IDAE, and following the directives of the Data Controller, EDP."

THIRD: Admission to processing

On 3/06/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: Preliminary investigation actions

The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions AI/00239/2023, for the clarification of the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions

established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:
On 15/11/2023, the COMPLAINANT was requested to provide a copy of the document that was attached to the email that prompted their complaint, regarding which the complaint was forwarded to the two entities mentioned above, titled: "(...)_Listado poderes.pdf," mentioned on page 4 of the attached document "01_Mail.pdf" included in entry REGAGE(...).

The submission was delivered on the same day, and on the same day, a response was sent to the AEPD, consisting of:

- The annex contains 319 pages in pdf.

First, it includes the "AGREEMENT FOR THE DISTRIBUTION OF COLLECTIVE SELF-CONSUMPTION ENERGY INSTALLATIONS WITH EXCESS NOT SUBJECT TO COMPENSATION," dated 3/10/2022. It contains the introduction, which states: "In application of Royal Decree 244/2019 of 5/04, the following consumers agree to associate with the self-consumption installation."

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"collective of electrical energy," self-consumption code CAU: (...). It contains an Excel-type list with FIVE fields.

The first includes a list of 99 NIFs (five of which are from legal entities), the next with the corresponding CUPS (unique supply point code), followed by the UTM field with two different numbering series for each person, followed by the cadastral reference, and the last, the distribution coefficient.

At the bottom of the last page, it states: "we kindly ask you to receive this communication and proceed to carry out the necessary procedures," with a person signing "on behalf and representation of the aforementioned associated consumers according to the powers of representation ATTACHED TO THIS DOCUMENT."

- Following this in the same pdf file for each of the 99 members of the association, is the document "confirmation of power of representation" "to confirm the hiring" that was sent and generated by BTP ONETEC SL (trusted third party) for each associated consumer, (request for confirmation response) which reflects for the signature the data of the phone number and email address of the associated consumer granting the power. Generally dated in June, July 2021.

- Following this is the document that complements the previous one, "power of representation" to EDP, which also includes the names and surnames, their NIF, and their address for, among other things:

- the necessary procedures for the registration, modification, or cancellation of the solar installation in which the client participates, and for,

- the signature, on behalf of the Client, of the Agreement for the Distribution of the energy generated by the Installation, prior determination of the coefficient corresponding to the Client based on the capacity of the Installation, the number of associated consumers sharing it, and what has been agreed upon in the contract signed between the Client and EDP.

- "Carrying out the communications that are necessary in relation to the Distribution Agreement to the distribution company and to the marketer with which the Client has contracted the supply."

By dates, the oldest power of attorney bears a signature of 21/06/2021.

The power of attorney of the complainant is included among all those sent and is also listed among the 99 NIFs.

FIFTH: Inquiry into the data of the company EDP SOLAR ESPAÑA, S.A.

According to the report obtained from the AXESOR tool, the entity EDP SOLAR ESPAÑA, S.A. is part of the economic group VERBUND GREEN POWER GMBH, EU size: Corporate.

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In financial information for the year 2022, the figure of (...) euros appears as turnover, in the type of company: group subsidiary, 60 employees, medium size, global parent company VERBUND GREEN POWER GMBH with more than one thousand employees.

FUNDAMENTALS OF LAW

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II Breach of Obligation

In the GDPR, it is defined in its Article 4.1), 2) and 7:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;"

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7) "data controller" or "controller": the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States."

This file addresses, for the purposes of personal data protection, the content of the ANNEX sent via email on February 22, 2023, on behalf of the respondent, EDP, to the participants in an electric self-consumption process aimed at enabling self-consumption in their domestic contracts, once the distribution agreement among the participants was signed by EDP on behalf of each of the participants in the project. To carry out the incorporation of each participant into their individual electricity supply contracts and complete a procedure, EDP sent an email to all participants, providing them with a common annex that is the subject of the complaint.

The reason for sending the email with the attached file was, according to the literal text of the email, that the marketers would likely contact them, and it was sent to the 99 participants in the process, the majority being natural persons (except for FIVE, which are legal entities) in an attached pdf file (319 pages) with the documentation and data that each participant theoretically had to provide to their marketer.

The data controller determines the purposes and means of processing; that is, the why and how of the

processing. They must decide on both the purposes and the means.

EDP fulfills the condition of being the data controller of personal data because the participants in the self-consumption project, after accepting it, establish a contractual relationship with EDP with which they sign contracts, with the purpose of managing, maintaining, developing, completing, and controlling the contracting and functioning of the “Barrio Solar” service, including the empowerment of EDP by the participants to sign the distribution agreement on their behalf and carry out the necessary procedures for the completion of the contracting between the distribution and marketing companies of energy. EDP also decided the means, initially with a trusted third party to ensure participation in the self-consumption community, and a mandate for the participants to empower EDP to sign the distribution agreement on their behalf, as well as to send emails to the participants in the self-consumption project, as means of processing their data, and its specific content. In the course of that relationship, EDP processed the data of the complainant and other participants (94 natural persons, FIVE were legal entities), defining the purposes as the way to obtain the result or achieve the objective, and how it will achieve that objective, fulfilling its condition as the data controller.

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The matter is that, in the attachment to the email addressed to all participants, titled (...)_Listado poderes.pdf, there were data of all the participants, which were related to the document entitled:

“contract of distribution.” From this, the following characteristics should be highlighted, in summary:

- Document of “AGREEMENT FOR THE DISTRIBUTION OF COLLECTIVE SELF-CONSUMPTION ENERGY INSTALLATIONS WITH EXCESS NOT SUBJECT TO COMPENSATION,” dated 3/10/2022.

It consists of an Excel-type table containing the data of all the consumer participants in the self-consumption installation, totaling 99 individuals (FIVE of whom are legal entities), including: NIF, CUPS code (unique supply point code), UTM, cadastral reference of each dwelling, and the distribution coefficient.

- Following this, on the same page of the 319-page PDF file, is a copy of the documents “confirmation of power of representation” carried out by a trusted third party, in which the phone number and email address of the 99 participants in the project (FIVE of whom are legal entities) can be seen, along with a copy of the power of representation documents for 99 individuals (FIVE of whom are legal entities) containing their names and surnames, NIF, and postal address in favor of EDP, for among other acts, to sign on their behalf the “agreement for the distribution of the energy generated by the installation” and “to carry out the communications necessary in relation to the Distribution Agreement to the distribution company and to the marketer with which the Client has contracted the supply.” That is, the email is sent for the participants to carry out an act, although in the services included in the contracts, it states that EDP would be the one to communicate such distribution agreement to the marketers, for which it held the representation. It was also stated in the RAT that data is communicated, among others, to (...).

It is worth noting that all processing of personal data must comply, on the one hand, with the principles relating to the processing of data set forth in Article 5 of the GDPR and, on the other, with one of the principles relating to the lawfulness of processing enumerated in Article 6 of said Regulation (see, in this regard, the judgment of 16/01/2019, Deutsche Post, C-496/17, EU:C:2019:26, paragraph 57 and cited jurisprudence). Furthermore, whatever the legal basis legitimizing the processing, every data controller, and the claimed EDP is one, must respect the principles of processing set out in Article 5 of the GDPR. We will highlight Article 5.1.c) of the GDPR, which establishes that:

“1. Personal data shall be

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (“data minimization”);”

This article relates to Recital 39 of the GDPR, which states regarding data processing that “...the specific purposes of the processing of personal data must be explicit and legitimate, and must be determined at the time of collection. Personal data must be adequate, relevant and limited to what is

necessary for the purposes for which they are processed. This requires, in particular, ensuring that the retention period is limited to a strict minimum. Personal data should only be processed if the purpose of the processing could not reasonably be achieved by other means.”

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Furthermore, regarding the legal basis on which EDP relies for data processing, Article 6.1(b) of the GDPR states that “processing shall be lawful only if at least one of the following applies: ‘the processing is necessary for the performance of a contract to which the data subject is a party...’.”

Article 5.1(c) of the GDPR reflects the principle of proportionality (see the judgment of 11/12/2019, Asociația de Proprietar bloc M5A-ScaraA, C-708/18, EU:C:2019:1064, paragraph 48), in the sense that, if there are alternatives to achieve the same purpose intended by the respondent, the least invasive option must be chosen.

The principle of proportionality must be considered from the moment personal data is used to restrict rights and freedoms, such as the right to data protection, when processing that data.

Regarding the common characteristics of the administrative, technical, and economic conditions for self-consumption of electricity, Royal Decree 244/2019 regulates them, and the modalities of self-consumption of electricity are defined in Article 9 of Law 24/2013 of 26/12, of the Electricity Sector. One of the steps, almost at the end of the process of the self-consumption installation procedures, relates to the distribution agreement of the consumers associated with self-consumption, with the electricity distributor/marketer (generally, with which each titleholder has contracted the service).

The aforementioned Royal Decree 244/2019 establishes in Annex I the format of the file that must be used to communicate the distribution coefficients to the distribution company.

In principle, these “Distribution Agreements” signed by all participants must be sent individually by each consumer to the distribution company, either directly or through their marketer. If a renewable energy community has been formed for collective self-consumption, it may represent the associated consumers in all these procedures. Any other duly authorized agent can act as a representative, functioning as a self-consumption manager.

In ANNEX 1 of the aforementioned Royal Decree, it is indicated that “The energies and powers for billing and settlement purposes defined in Article 3 of this Royal Decree shall be calculated in accordance with the following provisions:

1 “coefficients and requirements of the distribution coefficients.”

For each consumer and participant in collective self-consumption, this coefficient will take the values specified in an agreement signed by all participating consumers of collective self-consumption and notified to the distribution company as responsible for reading the consumption.

In the name of the txt file

CAU

CUPS

coefficient

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The model 5 of the IDAE Guide (Institute for Diversification and Energy Saving, professional guide for processing self-consumption edition v.5.1, January 2023) contains a model agreement for the distribution of collective self-consumption energy, installations with surpluses not subject to compensation, in an Excel sheet with the data of the consumer-holder of the supply, the NIF, CUPS, and distribution coefficient, which is the document that must be signed.

However, EDP sent other documents unrelated to the distribution agreement, which contained: phone number, email, postal address of the holder, UTM, and cadastral reference, which exceed the

distribution document and were included in different documents related to the power of representation to EDP to manage on behalf of each client, among other things, the signing of the distribution agreement.

The Guide describes the necessary steps for processing electricity generation installations for self-consumption.

The Guide states on page 12 that: “For the realization of collective self-consumption, a renewable energy community may be established as long as the necessary requirements are met and may act as a representative of the associated consumers when they grant the corresponding authorizations. However, collective self-consumption can be carried out without establishing a renewable energy community, simply through an agreement among consumers. Any other duly authorized agent may also be the representative, acting as a self-consumption manager.”

The IDAE guide defines the difference between “commercializing companies,” which are those that sell energy to consumers through supply contracts signed with them, and “distribution companies,” which are the owners of the electricity distribution network that provide the distribution service and are responsible for its management, operation, and maintenance. They are responsible for analyzing, and if applicable, accepting or denying access and connection requests. “They are also responsible for providing commercializing companies with the necessary data to enable billing and settlement of energy and the tolls, charges, and amounts that apply.”

According to the IDAE Guide, distribution agreements must be sent by each consumer to the distribution company, directly or through their commercializer. (All consumers must send the same signed agreement) for the realization of collective self-consumption if they have opted to form a renewable energy community; this community may exercise the representation of the associated consumers in all these procedures. Any other duly authorized agent may be a representative, acting as a self-consumption manager” (section 13 Distribution agreement and surplus compensation contract). Page 132 of the aforementioned Guide “collective self-consumption WITH surpluses not subject to compensation” reiterates that “it is necessary for the participants to sign an agreement with the criteria for the distribution of the generated energy. This agreement must be signed.

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by all associated consumers and sent individually by each associated consumer to the distribution company—directly or through its marketer—In the file that consumers must send “in a plain text file with the extension ‘txt’ that will contain the value of the coefficients of the consumers participating in self-consumption,” containing the fields:

Self-consumption code, CUPS, hour, coefficient

In this specific case, the claimant states that an email was sent to him on 22/02/2023. ECODES and EDP acknowledge that it was sent at the request of the latter, containing a file that EDP forwards for transmission to the participants of the self-consumption project (99 people), (FIVE of them legal entities) with two annexes. One of the attached annexes, in pdf “(...) (which corresponds to the self-consumption code CAU) List of powers.pdf, certifies that it contains the DISTRIBUTION COEFFICIENTS, with personal data beyond the MINIMUM CONTENT determined by the applicable sectoral regulation, because it also sends to each participating member the powers of representation with data that has no relation whatsoever to the aforementioned document of distribution coefficients. Analyzing the context of the email sent on 22/02/2023 in which the attached pdf file with the data that is the subject of the complaint regarding the progress in the self-consumption supply process was sent, it indicated that it could be that the electricity marketers requested from the participants, “a series of information about the self-consumption installation to which you are registered,” and it was instructed that “The documentation that you each have to send them and that we attach in this email is as follows: Distribution Coefficients Contract (PDF).”

Thus, the context in which the email and the attached file are sent in this specific case has nothing to do with EDP's repeated thesis that the distribution agreement is sent for transparency and that no

element can be removed, because in that case it would not require the submission of the powers of each associate with their data or the data of the signed contract.

It must be differentiated between the signed distribution agreement, for which the respondent held the power of the associates, and the documents that serve as the basis and instrument to achieve that distribution agreement. Subsidiarily, the content that EDP gave to that distribution agreement, introducing data of the participants that do not appear either in the Royal Decree that regulates the matter or in the IADE Guide. Finally, the provision in an annex sent to the participants by email, containing that information related to participating individuals that goes beyond the legitimacy for which the participants provided the data to EDP, framed within the purpose of providing the service, for which such data is not limited to what is necessary.

Neither the consent of each user to join the project granted through a trusted third party, with the data contained (NIF, email, phone number) would form part of that distribution agreement, both due to the nature of the document and its purposes and its null relation to the distribution agreement, being merely an instrument for its subsequent achievement.

The same can be said of the general granting of powers for the various activities that make up the self-consumption project to EDP, which are also included in the attachment sent by email. The address contained here is C/ Jorge Juan, 6

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of the participating consumers, which may not be that of the supply location, and their NIF.

Thus, the purpose of the case at hand, according to the literal text of the email sent, does not respond to that reason but rather to sending the distributor the distribution agreement that contains the distribution coefficients. It is concluded, therefore, that the principle of data minimization has been breached by sending the annex via email, which contained part of data that was not adequate, relevant, and excessive for the purposes for which it is processed.

In this specific case, an internal aspect of data processing is observed that:

- Each associated consumer granted power of attorney to the respondent, EDP, not only to sign the distribution agreement on behalf of each client but also, among other things: -literal citation from the document “power of representation” to EDP- for the “execution of the communications necessary regarding the distribution agreement to the distribution company and to the retailer with which the client has contracted the supply,” which makes it incomprehensible that all the data referred to in the attached file is sent to each associated consumer, as it would have corresponded to EDP SOLAR ESPAÑA, S.A., to send the aforementioned documentation to each distributor, not to each user.

- Here, what is analyzed is not what would be made known to the Retailer/distributor, but what was made known to the associates of the self-consumption project “Barrio Solar,” and its necessity and proportionality. To acknowledge that the distribution agreement signed by all associated consumers identifies the holders, at least for the distributor/retailer, the aforementioned distribution agreement should also contain the name and surname as a necessary minimum identifying value.

- The data: NIF, cadastral reference, address of each participant, phone number, and email are unnecessary to disclose to all participants in the self-consumption process.

Examining the circumstances and purpose, it is agreed that the sending was neither necessary nor relevant and that EDP SOLAR ESPAÑA, S.A., has exceeded the content of personal data included in the attached file that is the subject of the complaint, disseminating all the data among all the members of the aforementioned self-consumption.

It is therefore considered that EDP SOLAR ESPAÑA may have infringed Article 5.1.c) of the GDPR.

III Classification of the infringing conduct

In accordance with the evidence available, it is considered that the respondent has processed data that was excessive as it was not necessary, adequate, or proportional for the intended purpose.

The known facts constitute an infringement, attributable to the respondent, of Article 5.1.c) of the GDPR, with the scope expressed in the previous Legal Foundations, which, if confirmed, could imply

the commission of the infringement classified in Article 83.5, a) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states that:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;” In this regard, the LOPDGDD, in its Article 71, establishes that: “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 of the LOPDGDD indicates:

“Article 72. Very serious infringements.

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.”

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;

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b) the intent or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied in accordance with Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

a) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

e) the categories of personal data affected by the infringement;

a) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor reported the infringement and, if so, to what extent;

b) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;

c) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and

d) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding point k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective

measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

The GDPR, Article 83.1, warns that in imposing administrative fines for infringement of the GDPR, the Supervisory Authority will ensure that they are in each case “effective, proportionate, and dissuasive.” These criteria that govern the determination of the amount of the fine require consideration of all circumstances. In this case, the following circumstances are deemed concurrent:

- Article 83.2.a) of the GDPR:

“The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damages suffered.”

The Agency considers that the nature of the infringement entails a loss of disposition and control over personal data for the participants in the self-consumption electricity project. The data processed in the operation of improperly sending the file included: the cadastral reference, the UTM code, the phone number, the email, and the addresses of the holders, which affected 99 users (FIVE of whom are legal entities).

- Article 83.2.b) of the GDPR.

Intent or negligence in the infringement:

The Supreme Court in its ruling of 23/10/2010 - appeal no. 1.067/2006 - states that, “although the culpability of the conduct must also be proven, it must be considered in terms of the corresponding burden of proof, that ordinarily the volitional and cognitive elements necessary to appreciate it are part of the proven typical conduct, and that their exclusion requires evidence of the absence of such elements, or in its normative aspect, that due diligence has been exercised by the party claiming its absence; in summary, the mere invocation of the absence of fault is not sufficient for exculpation against a typically unlawful behavior.”

There can be no administrative sanction without the existence of the subjective element of culpability. The conduct of EDP SOLAR ESPAÑA, S.A. would not be sanctionable if there were no intent or negligence. In the conduct of EDP, which acted as a representative of a large number of people by bilaterally negotiating service contracts with those associated with self-consumption, and, on the other hand, managed the common distribution document, which was the one that had to be presented to the marketer. It was clear that, as a representative, it could not ignore that the documents of the contracts and mandate, that of the claimant dated 5/07/2021, prior to the distribution agreement document dated 3/10/2022, contained components and

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their purposes were entirely different. The former, arising from the bilateral relationship associated with EDP SOLAR ESPAÑA, S.A., and from mandate, while the distribution agreement had to contain a limited number of data from the entire collective of self-consumption users associated with the same project, among which were not those contained in the mandate and contract documents. This fact

seems clear. The fact of consulting the AEPD to see if the processing was being carried out correctly overlooked that, in the email sent to 99 people (FIVE of whom were legal entities), there was an attached file that did not maintain proportionality and necessity in the processing of such data. EDP SOLAR ESPAÑA, S.A., has maintained throughout the transfer of the complaint and in prior investigative actions that its actions were in accordance with the model established in the Royal Decree and in the IDAE Guide as determined in the model and annex, when it must obviously be recognized from the outset that more data has been processed and communicated to the self-consumption associates... Therefore, although the Agency considers that there was no intent on the part of EDP SOLAR ESPAÑA, S.A., there is indeed a lack of diligence in this conduct, failing to ensure compliance with the data protection obligations that pertained to it.

With its deterrent effect, administrative fines contribute to strengthening the protection of individuals regarding the processing of personal data and constitute, therefore, a key element to ensure respect for the rights of such individuals, in accordance with the purpose of the aforementioned Regulation to ensure a high level of protection for those individuals regarding the processing of personal data, which leads to determining that the fine to be imposed is 70,000 euros, without prejudice to what results from the instruction of the procedure.

V Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in art. 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

In relation to the measure, it must adjust the data processing when communicating to the participants only the strictly necessary data. Therefore, this measure would be imposed within 30 days from the notification of the resolution issued.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

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IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against EDP SOLAR ESPAÑA, S.A., with NIF A74466178, for the alleged infringement of Article 5.1 c) of the GDPR, in accordance with Article 83.5.a) of the GDPR, and classified as very serious for the purposes of prescription in Article 721.a) of the LOPDGDD.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of 1/10, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the sanction that may

correspond would be 70,000 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to EDP SOLAR ESPAÑA, S.A., with NIF A74466178, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 56,000 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 56,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 42,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above, 56,000 euros, or 42,000 euros, it must do so by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Additionally, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGGD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to it will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if it does not access them, its rejection will be recorded in the file, considering the procedure completed and continuing with the process. It is informed that it can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On December 5, 2024, the respondent has proceeded to pay the sanction in the amount of 42,000 euros, making use of both reductions.

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provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement and its legal qualification.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement is confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading “Termination in sanctioning procedures” provides as follows:

“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202305278, in accordance with the provisions of article 85 of the LPACAP.

SECOND: TO ORDER EDP SOLAR ESPAÑA, S.A. to notify the Agency within 30 days from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to EDP SOLAR ESPAÑA, S.A.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

1259-101224

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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